

IN THE PROBATE COURT FOR HICKMAN COUNTY, TENNESSEE
AT CENTERVILLE

IN THE MATTER OF THE ESTATE OF

LOU ANNA LAWHORN,

902195P

Deceased.

COMPLAINT TO COMPEL ACCOUNTING AND PAYMENT OF DISTRIBUTIVE SHARE

Applicant, Eddie Lawhorn, a residuary beneficiary of this estate, respectfully shows the Court the following:

1. On or before August 4, 1990, [REDACTED] and Freddie Joe Lawhorn qualified as co-executors of this estate.
2. The personal representatives have not been diligent in performing their duties.
3. Records of receipts, disbursements and distributions have been improperly or incorrectly kept.
4. A detailed and accurate accounting is necessary for the proper administration of the estate.
5. Pursuant to Tennessee Code Annotated Section 30-2-601(a), the personal representatives are required to make their accounting. Since it has been more than fifteen (15) months from their qualification, the Clerk and Master should be directed to cite them to appear and settle.
6. Since it has been more than eighteen (18) months from the grant of letters to the personal representatives, Applicant is entitled pursuant to Tennessee Code Annotated Section 30-2-710 to make application to compel the payment of his distributive share.
7. Applicant is entitled to one-half (1/2) of the distributable estate and has received partial distributions amounting to less than his full share.
8. Applicant believes the estate is solvent, that there are no outstanding debts or claims and that the assets of the estate are more than sufficient to pay any debts, charge or other claims entitled to priority.

Therefore, Applicant requests the following:

- A. Process issue and be served on the personal representatives of the estate.
- B. The Clerk and Master be directed to cite the personal representatives pursuant to Tennessee Code Annotated Section 30-2-602.
- C. The personal representatives be ordered to make their accounting, stating all receipts, disbursements, distributions and any remaining assets held in the estate, and providing sufficient proof of the transactions so accounted for.
- D. The Court order the personal representatives to proceed with a prompt, orderly closing of the estate and to distribute Applicant's distributive share.
- E. The Court surcharge the personal representatives, personally, for the costs, expenses and attorney fees incurred in these proceedings to compel the personal representatives to perform their duties as required by law.
- F. Such other, further and final relief as the Court deems equitable.

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